

		To the extent that Plaintiffs are claiming punitive damages in relation to the fraud cause of action, the motion is moot based on the above ruling on the motion for judgment on the pleadings. The motion is also untimely. Defendant itself cites the rule on this in its motion: “Under Code of Civil Procedure (“CCP”) section 435, ‘Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.’” (Motion, p. 2.) The Second Amended Complaint was filed on December 18, 2025. Defendant filed its answer on 2/10/26. (It was due earlier than this, 30 days after service of the 2AC pursuant to Code Civ. Proc., §435(b)(1).) The motion to strike was not filed until 3/26/26 and is therefore untimely. Defendant shall give notice of both rulings.
5.	2025-1457567 Plane Fetch Charter LLC vs. Firm Foundation Aviation, LLC	The motion to consolidate filed by Defendant/Cross-Complainant Firm Foundation Aviation, LLC and Cross-Complainant Timothy Lomakin is granted. When actions involving common questions of law or fact are pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or make such orders concerning proceedings. (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures) and to avoid the substantial danger of inconsistent adjudications (i.e., different results because the actions are tried before different factfinders). (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial at ¶ 12:340.) The Court finds there are common questions of fact or law such that consolidation would serve the ends of justice as well as judicial economy and efficiency. The motion is granted. The Court consolidates the following actions for all purposes: 1. Plane Fetch Charter LLC et al. v. Firm Foundation Aviation, LLC et al., case no. 30-2025-01457567; and 2. Plane Fetch LLC v. Firm Foundation Aviation, LLC, case no. 30-2025-01457617. The case with the lower number, ending in -7567, is the lead case. (Cal. R. Ct. Rule 3.350(b).)